

24SMCV02696 24SMCV02696

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-08-20

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C207%2C08%2F20%2F2026

Source SHA-256: 1c2eea83e3469d4dcfd1ffe2590dd78f761857f13e2516f80a79f67181562d85

Case Number: 24SMCV02696 Hearing Date: August 20, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

August

20, 2026

CASE NUMBER

24SMCV02696

MOTION

Motion

for Summary Adjudication

MOVING PARTIES

Defendants La Hillcrest Apartments, LLC
and OP Property Management, LP

OPPOSING PARTY

none

MOVING PAPERS:

Notice

of Motion and Motion for Summary Adjudication;

Memorandum

of Points and Authorities

Declaration

of Rachel M. Zuckowich

Separate

Statement of Undisputed Material Facts

Compendium

of Exhibits

OPPOSITION PAPERS:

(none)

BACKGROUND

This case arises from a dispute between tenant and landlord concerning alleged water intrusion into rental property.

The operative First Amended Complaint ("FAC") filed by Plaintiff Aleshia Hunter ("Plaintiff") against Defendants La Hillcrest Apartments, LLC ("Hillcrest") and OP Property Management, LP ("OP") (together, "Defendants") alleges six causes of action as follows:

1.

Negligence

2.

Private Nuisance

3.

Breach of Contract

4.

Breach of Implied Warranty of Habitability

5.

Breach of Implied Warranty of Peaceful and Quiet
Enjoyment

6.

Fraud/Concealment

Defendants now move for summary adjudication of
the following issues:

Issue No. 1: There is no triable issue of
material fact, and the undisputed evidence shows that Plaintiff's sixth cause
of action for fraudulent concealment fails as a matter of law because there is
no evidence Defendants concealed any material fact with the intent to defraud
Plaintiff.

Issue No. 2: There is no triable issue of
material fact, and the undisputed evidence shows that Plaintiff's claim for
punitive damages fails as a matter of law because she cannot establish by clear
and convincing evidence that Defendants acted with malice, fraud, or oppression
as defined by Civil Code section 3294.

The motion is unopposed.

LEGAL STANDARDS – MOTION FOR SUMMARY JUDGMENT/ADJUDICATION

"[T]he party moving for
summary judgment bears the burden of persuasion that there is no triable issue
of material fact and that he is entitled to judgment as a matter of law[.]
There is a triable issue of material fact if, and only if, the evidence would
allow a reasonable trier of fact to find the underlying fact in favor of the
party opposing the motion in accordance with the applicable standard of proof."
(Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850
(hereafter Aguilar).) "[T]he party moving for summary judgment bears an
initial burden of production to make a prima facie showing of the nonexistence

of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” 2 (Ibid.; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [summary judgment standards held by Aguilar apply to summary adjudication motions].)

Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility.” (Aguilar, supra, 25 Cal.4th. at p. 840 [cleaned up]; see also Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

A party may move for summary adjudication as to one or more causes of action, affirmative defenses, claims for damages, or issues of duty if that party contends that there is no merit to the cause of action, defense, or claim for damages, or if the party contends that there is no duty owed. (See Code Civ. Proc., § 437c, subd. (f)(1).) “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Ibid.) A cause of action has no merit if: (1) one or more elements of the cause of action cannot be separately established, even if that element is separately pleaded, or (2) a defendant establishes an affirmative defense to that cause of action.

(See Code Civ. Proc., § 437c, subd. (n); Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 583.)

Once the defendant has shown that a cause of action has no merit, the burden shifts to the plaintiff to show that a triable issue of material fact exists as to that cause of action. (See Code Civ. Proc., § 437c, subd. (o)(2); Union Bank v. Superior Court, supra, 31 Cal.App.4th at p.

583.) Additionally, in line with Aguilar,

“[o]n a motion for summary adjudication, the trial court has no discretion to exercise. If a triable issue of material fact exists as to the challenged causes of action, the motion must be denied. If there is no triable issue of fact, the motion must be granted.” (Fisherman’s Wharf Bay Cruise Corp. v. Superior Court (2003) 114 Cal.App.4th 309, 320.)

DISCUSSION

1. Fraud/Concealment

The elements for fraudulent misrepresentation are “(1) the defendant represented to the plaintiff that an important fact was true; (2) that representation was false; (3) the defendant knew that the representation was false when the defendant made it, or the defendant made the representation recklessly and without regard for its truth; (4) the defendant intended that the plaintiff rely on the representation; (5) the plaintiff reasonably relied on the representation; (6) the plaintiff was harmed; and (7) the plaintiff's reliance on the defendant's representation was a substantial factor in causing that harm to the plaintiff.” (Graham v. Bank of America, N.A. (2014) 226 Cal.App.4th 594, 605–606.)

“The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact.” (Hambrick v. Healthcare Partners Medical Group, Inc. (2015) 238 Cal.App.4th 124, 162.)

“There are four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.” (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 311.) In the absence of a fiduciary duty, “[a] duty to disclose facts arises only when the parties are in a relationship that gives rise to the duty, such as seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual arrangement.” (Ibid.)

Plaintiff alleges[1]

Defendants committed fraud/concealment as follows:

111.

About April, 2023, Defendants, and each of them, provided information about the Premises to Plaintiff and showed Plaintiff the Premises.

112.

Plaintiff was permitted a cursory inspection of the Premises. She was not given any opportunity to have professional inspections.

113.

Defendants, and each of them, did not disclose any complaints by other residents of the Premises and did not disclose any maintenance records or complaints regarding the condition of the Premises. Defendants did not disclose any prior history of mold or fungus problems with the Premises or any complaints of water intrusion, musty orders, or other indications of contamination submitted by former tenants or current tenants in adjacent apartments.

114.

Defendants, and each of them, made false representations to Plaintiff, including without limit falsely representing the safety of the Premises for a residence and the nature, duration, and scope of water intrusions and mold problems in the Premises. The Defendants falsely represented the Premises as being safe for residential occupancy. These false representations were made to Plaintiff by Jennifer and Diana, agents and/or employees of Defendants on or about April 24, 2023, when Plaintiff was considering and agreeing to lease the Premises. These false representations were made to Plaintiff by Manny Maintenance Manager, Diana, and Jennifer of Defendant OPDM when they falsely represented that repairs and maintenance had been completed [sic] in the Premise to abate and remediate for water intrusion and microbial contamination. The Defendants' representations made were in reality false. At the time of making the said representations, Defendants, and each of them, knew the representations were false when made. Evidence of Defendants' knowledge was discovered by the professional inspections performed at the Premises wherein the inspectors found evidence of continuing and unabated water intrusion and mold growth.

115.

Defendants, and each of them, made the representations recklessly and/or without regard for the truth, knowing if Plaintiff moved in and resided in the Premises, she might be harmed exposure to the contamination caused by the water intrusions in the Premises.

116.

Defendants, and each of them, failed to disclose important, material facts to Plaintiff regarding the Premises, including prior, current, or recent complaints of other tenants and whether prior construction and/or repair work on the Premises had been completed by a licensed professional in a satisfactory and approved manner. This information was in the possession, custody, and control of Defendants, and each of them, only, and was not accessible or available to Plaintiff prior to agreeing to rent.

117.

Defendants, and each of them, were notified by Plaintiff of the conditions of the Premises, but Defendants, and each of them, continued to conceal, and actively concealed, from Plaintiff material facts about the safety and health-related conditions present in the Premises. Specifically, the agents of Defendants claimed to have repaired and maintained the water intrusions in the Premises and alleged to have abated and/or remediated the contamination found in the Premises, but in fact the services engaged or performed failed to fix and remove the intrusions and contamination.

118.

Plaintiff did not realize Defendants were actively concealing the important facts and Defendants were intending to deceive Plaintiff by concealing the facts. [...]

121.

Plaintiff reasonable and justifiable reliance on Defendants' false representations caused additional exposure and further injury to Plaintiff, who was led to believe she could return to the Premises because the conditions had been investigated, abated, and resolved. Plaintiff was informed in December 2023 that repairs had been completed, but a County of Los Angeles, Department of Public Health ("DPH"), inspection on 12/12/23 found green mold on the wall of the guest room closet and mold in the bathroom wall corners under the sink cabinet. On 1/5/2024, DPH made a second inspection and found the violations remained, resulting in the scheduling of a third inspection for 1/19/2024. Plaintiff refused to return to the Premises.

(FAC ¶¶ 111-118, 121.) In support of their argument that Plaintiff will be unable to establish fraud, Defendants advance the following evidence:

- Plaintiff signed a one-year lease with La Hillcrest Apartments in April 2023.

(UMF No. 1.)

- Plaintiff toured the apartment four times before applying and signing the lease, during which tours Plaintiff observed that the unit was warmer and seemed to have more condensation than another unit she was considering, yet ultimately Plaintiff chose this unit over the cooler unit because it had a better view. (UMF

No. 2.)

- Plaintiff began moving in April and began living there in May. (UMF No. 3.)

- During Plaintiff's first week at the apartment, Plaintiff made several maintenance and repair requests, which Defendants accommodated including:

- o

- Fixing a toilet that wouldn't flush

- o

- Installing another bathroom fan

- o

- Cleaning the patio door

- o

- Replacing the kitchen screen

- o

- Repairing

guest bedroom windows

o

Balancing

the refrigerator (UMF No. 4.)

· Plaintiff continued contacting Defendants on a regular basis with additional complaints, including dust on top of her refrigerator, dissatisfaction with tree and shrub trimming, the resident above her stomping and galloping across the floors, noise from the property gate, and problems with her kitchen window. (UMF No. 5.)

· On May 5, 2023, Plaintiff texted Defendants that she did not want maintenance coming “back and forth” but wanted everything fixed at once. When Defendants responded, asking for a time and day maintenance can come take care of it all together, Plaintiff responded, “no” and that she can’t “waste time” having “random conversations over and over.” (UMF No. 6.)

· On May 24, 2023, Plaintiff made several additional complaints about her upstairs neighbor, including that she sounded “like a horse galloping across the floors,” that she was awake in “the wee wee of the nights” and that she felt “endangered” by the neighbor’s boyfriend’s dry sense of humor.

· On June 12, 2023, Plaintiff complained of mold and water intrusion in her guest bedroom closet and on her bathroom and bedroom floor. (UMF No. 8.)

· Plaintiff contacted Defendants’ maintenance manager Manny Vasquez about the issue, who showed up to her unit the same day with a second worker to clean up. (UMF No. 9.)

· The next day, Manny arranged for remediation with a third-party vendor ATI Disaster Recovery Services (“ATI”). (UMF No. 10.)

· Defendants attempted to coordinate

remediation with Plaintiff over the next few days, but Plaintiff did not allow them to start work. (UMF No. 11.)

· Defendants then issued a 24-hour notice of intent to enter Plaintiff's unit for remediation, to which Plaintiff responded she would not allow anyone into her unit, as she would be working and entertaining visitors. (UMF No. 12.)

· On June 20, 2023, Plaintiff denied ATI entry to her unit to perform remediation. (UMF No. 13.)

· After a 10-day delay, Plaintiff finally allowed entry into her unit, and ATI performed remediation until mid-July. (UMF No. 15.)

· After the first remediation in July 2023, Plaintiff noticed a line of condensation in her guest bathroom and requested that Defendants address it. (UMF No. 16.)

· Defendants immediately sent someone to examine and remediate the bathroom. (UMF No. 19.)

· Plaintiff had previously observed a similar condensation line shortly before moving in, at which time Mr. Vasquez informed Plaintiff he intended to paint over the line, to which Plaintiff responded, "Do whatever you think is necessary." (UMF No. 17-18.)

· When it became apparent Plaintiff was dissatisfied with her unit, Defendants offered Plaintiff the option to break her lease without penalty. She did not accept the offers, "hanging up in his face" at one point for reasons Plaintiff could not recall. (UMF No. 20-21.)

· Plaintiff refused to pay any rent but kept her possessions in the unit for nearly a year. (UMF No. 22.)

- In August 2023, Plaintiff moved back into the unit to oppose Defendants' efforts to evict her. (UMF No. 23.)
- In November 2023, Plaintiff opened the guest bedroom closet for the first time since the second remediation in July 2023 and noticed mold, which she reported to maintenance again. (UMF No. 24.)
- Defendants did not work with Plaintiff to remediate the issue at that time, given that she was not paying rent and refused to leave. (UMF No. 25.)
- Hillcrest propounded special interrogatories on Plaintiff asking the basis for her fraudulent concealment claim. When asked to provide all facts supporting her contention that Defendants "cajoled and induced" her to sign the lease, Plaintiff responded only that Hillcrest said "multiple things" to her "to talk her into getting the lease" but did not identify any specific statements that were made, who made them, or how such statements purportedly induced her to lease an apartment she otherwise would not have leased. (UMF No. 26.)
- When asked to provide all facts supporting her contention that Defendants "had received complaints from former tenants about water intrusions, musty odors, and fungal contaminants," Plaintiff offered only the vague assertion that another resident identified as "Faye" experienced similar issues because "her son was heavily effected [sic] by mold spurs [sic]." (UMF No. 27.)
- When asked to provide all facts supporting her contention that Defendants knew of the contamination but concealed or covered it up for purposes of re-letting the unit without having to do proper remediation, Plaintiff identified only the single instance from May 2023 described above in which Manny Vasquez painted over a line of condensation in her bathroom after telling her he was going to do so. (UMF No. 28.)

Therefore, Defendants have met their initial prima facie burdens of production and persuasion to demonstrate that Plaintiff will be unable to establish fraud or fraudulent concealment, and Plaintiff has not opposed the motion to create any triable issues of material fact.

2. Punitive Damages

Per Civil Code section 3294, to prevail on punitive damages claim, a plaintiff must demonstrate that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) As set forth in the Civil Code,

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (2)

"Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. (3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294, subd. (c)(1)-(3), emphasis added.)

Plaintiff alleges "Defendants knew of the contamination but concealed or covered it up for purposes of re-letting the Premises without having to incur the cost and time delay of making proper remediation and abatement" which has resulted in "months of medical care" to treat the symptoms of mold exposure.

(FAC ¶¶ 28, 36.) Further, Plaintiff alleges:

61. Defendants' decision to constructively evict Plaintiff, as opposed to investigating and remediating the contamination, was done in retaliation of Plaintiff's valid and multiple complaints. This conduct is grounds for punitive damages and reasonable attorney's fees in and of itself, without additional evidence of conscious disregard and the purposeful decision to defer necessary and needed maintenance at the Premises. Said eviction caused serious hardship on Plaintiff, both emotionally and financially. Defendants' behavior rose to the level of outrageous, despicable, and malicious conduct that would warrant imposition of punitive damages in an amount sufficient to punish Defendants and deter Defendants and others from engaging in such reckless and intentional conduct in the future.

(FAC

¶ 61.)

Defendants advance the same evidence in support of their motion for summary adjudication of Plaintiff's claim for punitive damages. Accordingly, Defendants have met their initial prima facie burdens of production and persuasion to demonstrate that Plaintiff will be unable to demonstrate Defendants acted with malice or oppression by clear and convincing evidence, and Plaintiff has not opposed the motion to establish otherwise.

CONCLUSION AND ORDER

The Court grants Defendants' motion for summary adjudication and the Court will enter the proposed Order lodged on May 28, 2026

Defendants shall provide notice of the Court's ruling/Order, and file the notice with a proof of service forthwith.

DATED: August 20, 2026 _____/s_____

Michael

E. Whitaker

Judge

of the Superior Court

[1] "The pleadings play a key role in a summary judgment motion. The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues and to frame the outer measure of materiality in a summary judgment proceeding. As our Supreme Court has explained it: The materiality of a disputed fact is measured by the pleadings, which set the boundaries of the issues to be resolved at summary judgment. Accordingly, the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff's theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings." (Hutton v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493 [cleaned up]; see also Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1258 ["The complaint limits the issues to be addressed at the motion for summary judgment. The rationale is clear: It is the allegations in the complaint to which the summary

judgment motion must respond"].)